

Non-Compete and Non-Solicitation Agreement

This Non-Compete and Non-Solicitation Agreement ("Agreement") is entered into as of [Date] by and between [Company Name] ("Company") and [Individual Name] ("Individual").

1. Background.

Individual has or will have access to Company's confidential business information, client relationships, and/or trade secrets in connection with [Relationship, e.g. "Individual's employment" or "Individual's role as a contractor"].

2. Non-Competition.

During the term of the relationship and for a period of [Duration, e.g. "12 months"] afterward, within [Geographic Scope], Individual agrees not to engage in any business that directly competes with Company in [Description of Business/Industry].

3. Non-Solicitation of Clients.

During the same period, Individual agrees not to solicit or attempt to solicit any client or customer of Company with whom Individual had material contact, for the purpose of providing competing products or services.

4. Non-Solicitation of Employees.

During the same period, Individual agrees not to solicit or encourage any employee or contractor of Company to leave their engagement with Company.

5. Reasonableness.

The parties agree that the restrictions in this Agreement are reasonable in scope and duration and necessary to protect Company's legitimate business interests. Enforceability of non-compete provisions varies significantly by jurisdiction, and some jurisdictions restrict or prohibit them entirely — confirm local law before use.

6. Governing Law.

This Agreement is governed by the laws of [Jurisdiction].

Signatures

IN WITNESS WHEREOF, the parties have executed this Agreement as of the dates set forth below.

Company

Signature

Date

Individual

Signature

Date

This is a general template provided for informational purposes only and does not constitute legal advice. Consult a qualified attorney to review this document before use for your specific situation and jurisdiction.